

**UNIVERSITY CREDIT UNION v YVONNE BERRY,
individually and as Trustee**

25CF15100

**PLAINTIFF'S MOTION TO STRIKE CROSS-COMPLAINT/
PLAINTIFF'S MOTION FOR SUMMARY
JUDGMENT/SUMMARY ADJUDICATION**

This case involves the alleged breach of a solar loan entered into between University Credit Union ("Plaintiff") and Yvonne L. Berry, individually and as a Trustee of the Yvonne L. Berry Trust ("Defendants.") Now before the Court is a motion to strike Defendants' Cross-Complaint and Plaintiff's motion for summary judgment.

The motions were previously before the Court. On May 8, 2026, the Court noted that the Defendants' Answer raised significant questions of material fact which could preclude summary judgment and gave Defendants until June 12, 2026, to file an opposition. No opposition has been filed, and accordingly, the Court adopts its tentative ruling as set forth below.

I. Background

On August 17, 2021, Defendants entered into a written loan agreement with Plaintiff for the sum of \$35,861.54 at 2.733 % per annum interest. (UMF 1.) Plaintiff performed under the contract. (UMF 2.) The last payment Defendants made was on December 3, 2024. (UMF 5.) There remains a balance of \$34,469.90 on the loan. (UMF 4.)

Defendant has denied the allegations and has asserted the defense that the signature on the Agreement is not hers and was fraudulently obtained. (Answer ¶ 9.)

II. Legal Standard

Summary judgment is proper when there are no triable issues of material fact, and the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc., § 437c(c).)

A plaintiff may move for summary judgment when the plaintiff contends there is no defense to the cause of action. (Code Civ. Proc., § 437c, subd. (a).) A plaintiff meets the burden of showing there is no defense by proving each element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) A plaintiff moving for summary judgment is not required to disprove any defense asserted by the defendant in addition to proving each element of the plaintiff's own cause of action. (*Aguilar v. Atlantic Richfield Co.* (2001) 25

Cal.4th 826, 853.) If the plaintiff meets its burden, then the burden shifts to the defendant to show the existence of a triable issue of material fact. (*Ibid.*) The moving party bears the burden of persuasion that there is no triable issue of material fact and that she is entitled to adjudication as a matter of law. (*Id.* at 850.)

III. Discussion

Plaintiff seeks summary judgment on its breach of contract claim. The elements of a cause of action for breach of contract are: (1) existence of a contract; (2) plaintiff's performance of its obligations under the contract or excuse for nonperformance; (3) defendant's breach of the contract; and (4) resulting damages proximately caused by defendant's breach. (*Reichert v. Gen. Ins. Co.* (1968) 68 Cal.2d 822, 830.)

Plaintiff has demonstrated sufficient evidence in support of its cause of action, and the burden is now upon Defendants to show the existence of a triable issue of material fact. Defendants have not filed any opposition to the motion for summary judgment despite the Court providing an extension of time for one, and have therefore failed to show the existence of a triable issue of material fact.

Accordingly, Plaintiff's **motion for summary judgment is GRANTED**; based on this ruling the Motion to strike cross-complaint is moot.

The Mandatory Settlement Conference scheduled for August 17, 2026, at 8:30 a.m. in Dept. 2 is VACATED.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order and Judgment complying with Rule 3.1312 in conformity with this Ruling.

FRAGOZA v TREVINO

25CV48144

PLAINTIFF/CROSS-DEFENDANT'S AMENDED DEMURRER TO SECOND AMENDED CROSS-COMPLAINT

This matter involves a real property dispute between Cruz Fragoza ("Fragoza") and Stevino Real Estate Investment, LLC ("LLC"), Steven C. Trevino ("Trevino"), Angela M. Barry ("Barry") and William Carter ("Carter") (collectively "Cross-Complainants.")

Now before the Court is a demurrer filed by Fragoza as to the fifth cause of action in the Second Amended Cross-Complaint ("SACC") for intentional infliction of emotional distress.

The Court grants Fragoza's request for judicial notice ("RJN"). Cross-Complainants have not filed any opposition to either the RJN or Motion.

I. Facts

These facts are compiled from the SACC.

Plaintiff and Cross-Defendant Cruz Fragoza ("Fragoza") filed this action on or about July 3, 2025, concerning adjacent parcels commonly known as 2912 and 2920 Heinemann Drive, Valley Springs, California. (SACC ¶ 1.) LLC is the owner of 2920 Heinemann Drive ("APN 2") and Trevino is the manager of APN2 and the residence thereon. (*Id.* ¶¶ 2, 3.) Barry and Carter have been tenants since 2010 and 2017 respectively. (*Id.* ¶¶ 4, 5.)

Next to APN 2 is an unimproved lot with a septic system ("APN 1"), which serves the residence on APN 2. (SACC ¶ 6.) Since 2008, Cross-Complainants have "openly and continuously" used the septic system on APN 1 as reasonably necessary to the care and maintenance of the system serving APN 2. (*Id.* ¶ 7.) They allege that Fragoza knew or should have known of this use and maintenance of APN 1 to serve APN 2 and has nevertheless claimed rights adverse to their own. (*Id.* ¶¶ 12, 13.)

On July 28, 2011, Fragoza notified LLC that he was the owner of APN 1 and that he had intentions to sell APN 1. (SACC ¶ 16.) Later in 2017, Fragoza again wrote to LLC